

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

V.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801
(Related: CGC-25-631802)

**NOTICE OF CROSS-CASE
JUDICIAL ESTOPPEL FACTS**

Purpose: Preservation only; no relief sought

Defendants (caption order): SUBHI ABDELHALIM; CSAA Insurance Exchange; Carbone, Smith and Koyama, LLP; Michael R. Chambers (SBN 132394); Phillips, Spallas and Angstadt, LLP; Priya D. Navaratnasingham (SBN 252686); Alberto Reyna (SBN 347323); and DOES 1 through 20, inclusive.

May 12, 2026 anti-SLAPP ruling: 9:00 a.m., Department 301, Hon. Christine Van Aken. Anti-SLAPP **GRANTED**; First Amended Complaint stricken in entirety.

Filing purpose: Appellate-record preservation under California Rules of Court, rules 8.124(b)(1)(B) and 8.155(a)(1)(A); Evidence Code sections 452(d) and (h); CCP section 1908.5; *Lerner v. Los*

1 *Angeles City Bd. of Ed.* (1963) 59 Cal.2d 382, 397. **No relief sought** from the trial court.

2 **I. PURPOSE**

3 This notice seeks **no relief** from the trial court. Plaintiff places on the Department 301 record,
4 for protection of the appellate record, that Porter Scott (counsel for the same defendants in related
5 case **CGC-25-631802**) has taken positions in 802 that are doctrinally inconsistent with positions
6 on which the May 12, 2026 order in this action was granted.

7 **II. RELATED CASE**

8 CRC 3.300 treats CGC-25-631801 and CGC-25-631802 as related. The appendix contains true
9 and correct copies of eight defense filings from 802.

10 Plaintiff concurrently lodges **Appendix R** (, Exhibits R-1 through R-7), a parallel volume of de-
11 fense conduct records from the underlying trial (Compex subpoena, trial transcripts, MIL 6/17,
12 CSAA denial letter). See Notice of Lodging (item 10) and Supplemental Request for Judicial
13 Notice (item 04b). Exhibit labels R-1 through R-7 do not renumber Q-1 through Q-8.

14 **III. CROSS-CASE CONTRADICTIONS**

15 The thirteen contradictions identified in the accompanying Memorandum (Q-1 through Q-13) are
16 each supported by the 802 defense filings attached as exhibits and preserved for appellate review.
17 Defense's prospective characterization of its 801 positions as alternative or arguendo arguments
18 does not avoid the estoppel; it only confirms that the underlying factual allegations remain admitted
19 on the 802 demurrer under *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966 to 967, and
20 *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.

21 **IV. APPELLATE PRESERVATION GROUNDS**

22 This notice is filed under California Rules of Court, rules 8.124(b)(1)(B), 8.155(a)(1)(A), 8.204(a),
23 and 8.252, and Evidence Code sections 452(d), 452(h), and 459, for protection of the record on
24 appeal in *Rosario v. Abdelhalim*, Cal. 1st Dist. Ct. of Appeal, Case No. A173827. *Lerner v. Los*
25 *Angeles City Bd. of Ed.* (1963) 59 Cal.2d 382, 397. Plaintiff reserves the right to move the Court of
26 Appeal under CRC 8.252 to augment the record on appeal with Exhibits Q-1 through Q-8 (the 802
27 defense filings attached to this notice) and to request appellate judicial notice of the same under

1 Evidence Code section 459. Plaintiff further reserves the right to ask the Court of Appeal to take
2 additional evidence on appeal under Code of Civil Procedure section 909.

3 **AUTHORITY TO FILE AND AUTHORITY FOR ACCEPTANCE**

4 **A. Plaintiff's Right to File**

5 Plaintiff files this paper in pro per. Code of Civil Procedure sections 367 (real party in interest),
6 1014 (appearance), 1010 (notice and papers), 1005(b) (service timing), 916(a) (limited stay; trial
7 court retains jurisdiction over collateral matters), and 425.16(i) (anti-SLAPP appeal does not stay
8 ancillary proceedings) authorize the filing. Business and Professions Code section 6125 bars only
9 the representation of others and does not prohibit a party from filing papers on the party's own be-
10 half. *Drozdik v. Patten* (1995) 35 Cal.App.4th 1654 (pro per litigant has standing to file). Califor-
11 nia Rules of Court, rules 8.124(b)(1)(B), 8.155(a)(1)(A), 8.204(a), and 8.252 authorize appellate-
12 record preservation filings in the trial court during the pendency of an appeal. Evidence Code
13 sections 452(d), 452(h), 453, and 459 authorize judicial notice requests at both the trial and appel-
14 late levels. *Lerner v. L.A. City Bd. of Ed.* (1963) 59 Cal.2d 382, 397 (party may place matters on
15 the trial-court record for appellate preservation). *Varian Medical Systems, Inc. v. Delfino* (2005)
16 35 Cal.4th 180, 189 to 191 (trial court retains jurisdiction to enforce or modify collateral orders
17 notwithstanding a pending appeal). *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938 (section 916(a)
18 stay does not divest the trial court of jurisdiction over matters not embraced in or affected by the
19 judgment). U.S. Const. amend. I (petition clause), amend. XIV; Cal. Const. art. I, sections 3 and
20 7 (due process, petition, and access to courts).

21 **B. Clerk's Duty to Accept**

22 Government Code sections 26800 et seq., 69846.5, and 70617 define the clerk's ministerial duties;
23 none authorizes a clerk to refuse a conforming paper on substantive grounds. California Rules
24 of Court, rules 1.20, 2.100, 2.118, and 2.259(c) govern format compliance and filing obligations.
25 SFTC Local Rules 2.10, 2.11, and 8.10 apply to electronic filings in this court. *Voorhies v. Greene*
26 (1983) 139 Cal.App.3d 989, 994 to 995 (clerk has no discretion to refuse filing of a conforming
27 paper; the duty is ministerial). *Mito v. Temple Recycling Center Corp.* (2010) 187 Cal.App.4th 276,
28 279 to 280 (refusal to file is subject to mandamus). *Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774,

1 777 to 778 (clerk cannot require a party to obtain court approval before accepting a conforming
2 document for filing). *Carlson v. Department of Fish and Game* (1998) 68 Cal.App.4th 1268, 1271
3 (ministerial duty to file conforming papers).

4 **C. Per-Document Authority (Notice)**

5 Code of Civil Procedure section 1010; California Rules of Court, rule 3.1110. No filing fee applies
6 (Government Code section 70617 does not list non-motion notices). Plaintiff files this notice as
7 plaintiff in pro per under Code of Civil Procedure section 1014; the trial court retains jurisdiction
8 over this collateral, record-preservation matter under section 916(a) and *Varian Medical Systems,*
9 *Inc. v. Delfino* (2005) 35 Cal.4th 180, notwithstanding the May 12, 2026 order. No relief is sought;
10 under Code of Civil Procedure section 1010 and California Rules of Court, rule 2.118, the clerk's
11 duty to accept this conforming paper is ministerial.

12 **V. RELIEF**

13 **None.** Register and preservation only.

Dated: May 26, 2026



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Plaintiff, In Pro Per

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